

The Supreme Court

- 1.** Every Judge of the Supreme Court after consulting the Chief Justice of the Supreme Court, is appointed by the President of India.
- 2.** In appointment of the Chief Justice of India, President can consult such Judges of the Supreme Court and the High Court as he thinks appropriate.
- 3.** A person is qualified for appointment as a judge of the Supreme Court, if he is : ? A citizen of India ? Has been a High Court Judge for at least 5 years ? Has been an Advocate of a High Court, or two or more courts in succession for at least 10 years {Ref.: Art. 124(3)}.
- 4.** No minimum age or fixed period of office is prescribed for appointment as a Judge of the Supreme Court.
- 5.** A Judge of Supreme Court ceases to be so, on : ? Attaining the age of 65 years; ? Resigning in writing addressed to the President; ? On being removed by the President. ? The only grounds for such removal are proved misbehaviour and incapacity {Ref.: Art. 124(4)}.
- 6.** Procedure for removal or impeachment of a Supreme Court Judge : ? A motion addressed to the President signed by at least 100 members of the Lok Sabha or 50 members of the Rajya Sabha is delivered to the Speaker or the Chairman. ? The motion is investigated by a Committee of 3 (2 Judges of the Supreme Court and a distinguished Jurist). ? If the Committee finds the Judge guilty, report of Committee is considered in the House where the Motion is pending. ? If the motion is passed in each House by majority of the total membership of the House and by a majority of not less than two-thirds of the members present and voting the address is presented to the President.
- 7.** The Judge is removed after the President gives his order for removal on such address.
- 8.** The procedure for impeachment is the same for Judges of the Supreme Court and the High Courts.
- 9.** After retirement a Judge of the Supreme Court can not plead or act in any Court or before any authority within the territory of India {Ref.: Art. 124(7)}.
- 10.** Jurisdiction of the Supreme Court is three-fold : 1. Original; 2. Appellate; and 3. Advisory.
- 11.** Disputes between different States of the Union or between Union and any state is within exclusive Original jurisdiction of the Supreme Court {Ref.: Art. 131}

12. The jurisdiction of the Supreme Court to entertain an application under Art. 32 for the issue of writs for the enforcement of Fundamental Rights is treated as an 'original' jurisdiction of the Supreme Court though called Writ Jurisdiction

13. The Supreme Court is the highest court of appeal from all courts in the territory of India.

14. Supreme Court is the highest authority for interpretation of the Constitution.

15. Supreme Court may hear appeals by granting special leave against any kind of judgement or order made by any court or tribunal (except a military tribunal).

16. Under advisory jurisdiction, Supreme Court can give its opinion on any matter of law or fact of public importance referred to it by the President. {Ref.: Art. 143}.